95313808

Rcpt: 33830 Rec: 24.00
DS: 0.00 IT: 0.00
10/19/95 _____ Dpty Clerk

JED PITTMAN, PASCO COUNTY CLERK
10/19/95 01:33pm 1 of 5
OR BK 3487 PG 1151

MAINTENANCE AGREEMENT

THIS MAINTENANCE AGREEMENT, made and entered into this _____ day of _____, 19____ by and between PASCO COUNTY, a political subdivision of the State of Florida, acting by and through its Board of County Commissioners, the governing body therefore, hereinafter referred to as the "County", and the MEADOW POINTE COMMUNITY DEVELOPMENT DISTRICT, a special purpose unit of local government established pursuant to Chapter 190, Florida Statutes, with its principal mailing address at P.O. Box 271772, Tampa, Florida 33688, hereinafter referred to as the "CDD",

W I T N E S S E T H:

WHEREAS, the Board of County Commissioners of Pasco County, Florida, hereby determines that the CDD is a special purpose unit of local government organized for the purpose of constructing and maintaining common properties serving Meadow Pointe, a residential subdivision, situate within Pasco County, Florida; and

WHEREAS, incident to development of said subdivision, the CDD has installed landscaping and irrigation facilities to support the landscaping within right-of-way conveyed to the said County by the CDD, and incident to such installation the Board of County Commissioners of Pasco County has requested a maintenance agreement as to said facilities, which is agreeable to the CDD; and

WHEREAS, the Board of County Commissioners of Pasco County, Florida, is satisfied that such properties wherein the improvements are situated or the landscaping is being planted are not needed for County purposes; it is

NOW, THEREFORE, in consideration of the foregoing premises, and in consideration of the of the sum of Ten ($10.00) Dollars and other good and valuable considerations, to each party paid, the receipt of which is hereby acknowledged, the parties agree as follows:

1. The CDD hereby agrees to maintain the landscaping and irrigation within the areas depicted on the attached Exhibit "A", in a safe and clean condition during the term of this agreement, and shall, following notice, trim vegetation to avoid any clear sight violation.

2. The CDD shall maintain public liability and property damage insurance in the amount of $1,000,000. Such insurance shall name the Pasco County Board of County Commissioners as an additional insured and shall bear the statement of the insurance company that the insurance shall not be modified or cancelled without notification to the Board of County Commissioners. The CDD further agrees to defend and hold the County harmless from all causes of action which may arise as a result of the use or maintenance of the properties wherein the landscaping and

irrigation facilities are located on the properties described on Exhibit "A".

3. This agreement in no way allows the placement of advertisement within the properties being used by the CDD or upon the structures located therein.

4. If the CDD defaults on any of the conditions of this agreement, it shall be given notice in writing and a reasonable time to correct the same. In the event the CDD fails to correct such default within a reasonable time after receipt of notice of the same, the County may, at its option, terminate the rights and privileges created by the acceptance of this agreement.

5. Should any provision herein be, for any reason, found to be invalid, it is understood and agreed that such condition shall not in any way affect any other provisions.

6. It is expressly stipulated that this agreement is a license for permissive use only and that the use of these facilities pursuant to this agreement shall not operate to create or to vest any property right in the CDD if or when Pasco County decides to further exploit the County right-of-way for any reason. The CDD further agree to obtain a County right-of-way use permit.

7. This agreement may be terminated by Pasco County at such time as the County seeks to further exploit the County right-of-way. This agreement shall be for an initial term of ten (10) years, and shall automatically renew thereafter on an annual basis.

IN WITNESS WHEREOF, the parties have caused this instrument to be executed the day and year first above written.

PASCO COUNTY, a political subdivision of the State of Florida, acting by and through its Board of County Commissioners

In the Presence of:

Donalee Schmidt

Print Name DONALEE SCHMIDT

Rebecca S. Hauk

Print Name Rebecca S. Hauk

By: _____ (SEAL)

10/17/95

APPROVED AS TO LEGAL FORM AND CONTENT

OFFICE OF THE COUNTY ATTORNEY

By: Peter Warshoke (SEAL)

MEADOW POINTE COMMUNITY
DEVELOPMENT DISTRICT

By: _____
Donald A. Buck,
Chairman, Board of Supervisors

Pamela Braun

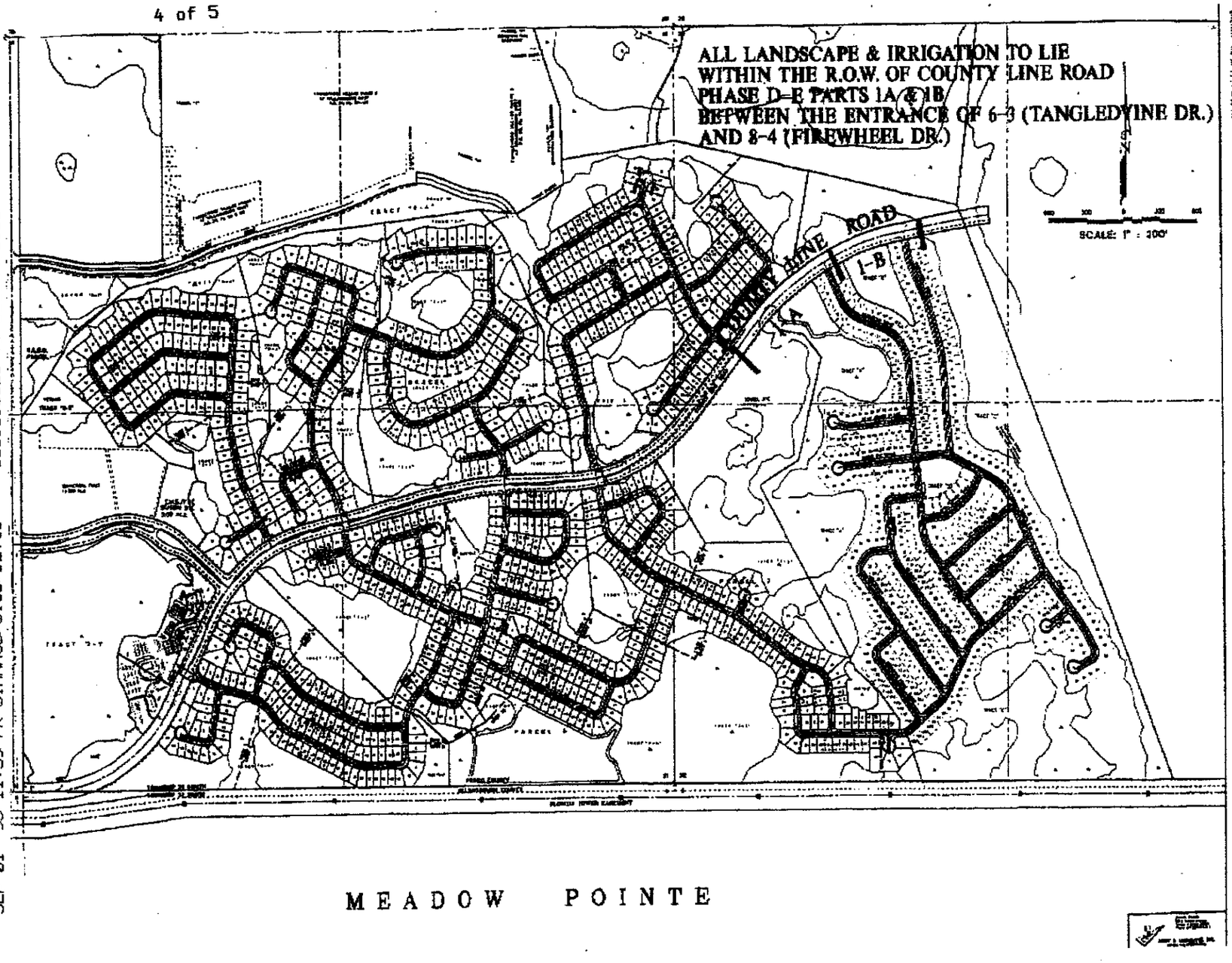
Print Name Pamela Braun

John R. Toborg

Print Name John R. Toborg

rowmaint.mp

EXHIBIT A



MEADOW POINTE

SEP 01 '95 11:39 FR SIMANCO/SICO/DEVCO 8139690128 TO 18138478901 P.02/02

** TOTAL PAGE.02 **

09/01/95 11:36 TX/RX NO.1846 P.002

CERTIFICATE OF COVERAGE

Certificate Holder

PASCO COUNTY BOARD OF COUNTY
COMMISSIONERS
705 EAST LIVE OAK AVENUE
DADE CITY FL 33525

Administrator

Issue Date 2/20/95 BDM

Florida League of Cities, Inc.
Public Risk Services
P.O. Box 530065
Orlando, Florida 32853-0065

AYERS/SIERRA INS ASSOCIATES
RECEIVED
FEB 23 1995
TAMPA, FLORIDA

COVERAGES
THIS IS TO CERTIFY THAT THE AGREEMENT BELOW HAS BEEN ISSUED TO THE DESIGNATED MEMBER FOR THE COVERAGE PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE COVERAGE AFFORDED BY THE AGREEMENT DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH AGREEMENT.

COVERAGE PROVIDED BY: FLORIDA MUNICIPAL INSURANCE TRUST

AGREEMENT NUMBER: FMIT 368 | COVERAGE PERIOD: FROM 10/1/94 | COVERAGE PERIOD: TO 9/30/95 12:00 Midnight Standard Time

TYPE OF COVERAGE - LIABILITY

General Liability

- [X] Comprehensive General Liability, Bodily Injury, Property Damage and Personal Injury
- [X] Errors and Omissions Liability
- [X] Employee Benefits Program Administration Liability
- [ ] Medical Attendants'/Medical Directors' Malpractice Liability
- [ ] Broad Form Property Damage
- [ ] Law Enforcement Liability
- [X] Underground, Explosion & Collapse Hazard
- [ ]

Limits of Liability
$100,000 Each Person
$200,000 Each Occurrence
or * Combined Single Limit

Deductible $____

Automobile Liability

- [ ] All owned Autos (Priv. Pass.)
- [ ] All owned Autos (Other than Priv. Pass.)
- [ ] Hired Autos
- [ ] Non-Owned Autos

Limits of Liability
$100,000 Each Person
$200,000 Each Occurrence
or * Combined Single Limit

Deductible $____

TYPE OF COVERAGE - PROPERTY

- [ ] Buildings
  - [ ] Basic Form
  - [ ] Special Form
- [ ] Personal Property
  - [ ] Basic Form
  - [ ] Special Form
  - [ ] Agreed Amount
  - [ ] Deductible $____
  - [ ] Coinsurance ____%
  - [ ] Blanket
  - [ ] Specific
  - [ ] Replacement Cost
  - [ ] Actual Cash Value
- [ ] Miscellaneous
  - [ ] Inland Marine
  - [ ] Electronic Data Processing
  - [ ] Bond
  - [ ]

Limits of Liability on File with Administrator

Automobile/Equipment - Deductible
[ ] Physical Damage $ Comprehensive - Auto $ Collision - Auto $ Miscellaneous Equipment

Other

*The limit of liability is $100,000 Bodily Injury and/or Property Damage per person or $200,000 Bodily Injury and/or Property Damage per occurrence. These specific limits of liability are increased to $5,000,000 (combined single limit) per occurrence, solely for any liability resulting from entry of a claim bill pursuant to Section 768.28 (5) Florida Statutes or liability imposed pursuant to Federal Law or actions outside the State of Florida.

Description of Operations/Locations/Vehicles/Special Items

Re: Maintenance Agreement. The certificate holder is added as an additional insured as respects to the described event.

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE AGREEMENT ABOVE.

DESIGNATED MEMBER

HI SIERRA
MEADOW POINTE COMMUNITY DEVELOPMENT
DISTRICT
POST OFFICE BOX 270788
TAMPA FL 33688

CANCELLATIONS
SHOULD ANY PART OF THE ABOVE DESCRIBED AGREEMENT BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, THE ISSUING COMPANY WILL ENDEAVOR TO MAIL ___ DAYS WRITTEN NOTICE TO THE CERTIFICATE HOLDER NAMED ABOVE, BUT FAILURE MAIL SUCH NOTICE SHALL IMPOSE NO OBLIGATION OR LIABILITY OF ANY KIND UPON THE PROGRAM, ITS AGENTS OR REPRESENTATIVES.

AUTHORIZED REPRESENTATIVE